

Court No. - 1

Case :- WRIT - C No. - 27395 of 2019

Petitioner :- Sahab Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anurag Dubey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

We heard Sri Anurag Dubey, learned counsel for the petitioner, Sri Ashutosh Dwivedi, holding brief of Sri Baleshwar Chaturvedi, learned counsel for the respondent Nos. 2 & 3, learned Standing Counsel for the State and perused the record.

By means of this writ petition under Article 226 of the Constitution of India, the petitioner has prayed for a writ of mandamus commanding the respondent Nos. 2 and 3 to install the transformer in respect of the electricity connection bearing No. 0402/003233 to the operation of tube well of the petitioner situated at village Durgpur, Post- Naugaon, District- Mainpuri.

According to the pleadings, as have been raised in the present writ petition, the petitioner applied for a new electricity connection. However, he submits, till date no action has been taken for grant of electricity connection to him.

Learned counsel for the petitioner has further drawn our attention to the relevant provisions as contained under Chapter IV of U.P. Electricity Supply Code, 2005.

We have gone through the relevant provisions as contained under Chapter IV, particularly clauses 4.1, 4.3 and 4.4 which cast obligation upon the licensee namely the respondents herein, to consider the application of the petitioner for new electricity connection and if otherwise there is no legal impediment, to ensure that electricity connection is granted speedily within four weeks.

We find no justification, therefore, for inaction on part of the respondents to linger on the matter and not to take any decision either to grant electricity connection or to refuse the same for the reasons to be accorded.

In such view of the matter, we are disposing of the writ petition with a direction to the respondent No.-3 to consider the application of the petitioner for grant of new electricity

connection and pass a reasoned and speaking order, either way, positively within a period of four weeks from the date of production of certified copy of this order.

With the aforesaid observations and directions, the writ petition stands disposed of.

Order Date :- 20.8.2019

Atmesh

(Ajit Kumar,J.) (Ramesh Sinha,J.)

Court No. - 1

Case :- WRIT - C No. - 27395 of 2019

Petitioner :- Sahab Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anurag Dubey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Sri Sanjeev Mishra, holding brief of Sri Anurag Dubey, learned counsel for the petitioner states that Sri Anurag Dubey could not appear in the matter on account of some personal reason.

Put the matter tomorrow, i.e., on **17.09.2019**.

Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of respondent Nos.2 and 3 is present.

Order Date :- 16.9.2019

Nitin Verma

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Court No. - 1

Case :- WRIT - C No. - 27395 of 2019

Petitioner :- Sahab Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anurag Dubey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Order on Correction Application

As prayed by learned counsel for the petitioner put up this case tomorrow i.e. on 18.9.2019.

Learned counsel for the petitioner undertakes that he shall inform about this order in writing to Sri Baleshwar Chaturvedi, learned counsel for the Power Corporation.

(Ajit Kumar,J.) (Ramesh Sinha, J.)

Order Date :- 17.9.2019

Deepika

Court No. - 1

Case :- WRIT - C No. - 27395 of 2019

Petitioner :- Sahab Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anurag Dubey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Order on Civil Misc. Correction Application No. 2 of 2019

Heard Sri Anurag Dubey, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondents.

The correction application is allowed.

The words "new electricity connection" occurring in Paragraphs 3, 5 and 7 of the order dated 20.8.2019 stands deleted and in its place the words transfer/ mutation in respect of electricity connection is substituted and the same may be read as such.

Order Date :- 18.9.2019

Nadeem Ahmad

(Ajit Kumar,J.) (Ramesh Sinha,J.)